

1
00:00:01,030 --> 00:00:01,850
[AAG Wadia] Good morning, Your Honor. We're

2
00:00:01,850 --> 00:00:02,670
[AAG Wadia] here in the matter while we are

3
00:00:02,670 --> 00:00:05,890
[AAG Wadia] Davis. Case number 25JU04261.

4
00:00:05,890 --> 00:00:07,750
[AAG Wadia] Today's day is October 31st,

5
00:00:07,750 --> 00:00:09,770
[AAG Wadia] 2025. This is the time to

6
00:00:09,770 --> 00:00:11,470
[AAG Wadia] accept your sexual trial as to

7
00:00:11,470 --> 00:00:13,480
[AAG Wadia] mother in this matter. Yasmin W

8
00:00:13,480 --> 00:00:14,880
[AAG Wadia] adia on behalf of the Attorney

9
00:00:14,880 --> 00:00:16,390
[AAG Wadia] General's Office, on behalf of

10
00:00:16,390 --> 00:00:17,800
[AAG Wadia] the Orton Department of Human

11
00:00:17,800 --> 00:00:19,340
[AAG Wadia] Services court worker Emily Mar

12
00:00:19,340 --> 00:00:20,840
[AAG Wadia] quand, permanency caseworker

13
00:00:20,840 --> 00:00:22,110
[AAG Wadia] David Mellon, as well as PS

14
00:00:22,110 --> 00:00:23,690
[AAG Wadia] worker Ashley Platton. On

15
00:00:23,690 --> 00:00:24,820
[AAG Wadia] behalf of the trial in this

16
00:00:24,820 --> 00:00:26,350
[AAG Wadia] matter, counsel Ryan Lotzky.

17
00:00:26,350 --> 00:00:28,240
[AAG Wadia] Mother Ashley Penn is not

18
00:00:28,240 --> 00:00:29,170
[AAG Wadia] present.

19
00:00:30,170 --> 00:00:31,850
[AAG Wadia] father Alquan Davis is present,

20
00:00:31,850 --> 00:00:33,420
[AAG Wadia] represented by counsel Ivana M

21
00:00:33,420 --> 00:00:35,090
[AAG Wadia] oles. On behalf of the CASA

22
00:00:35,090 --> 00:00:35,450
[AAG Wadia] program

23
00:00:35,450 --> 00:00:37,930
[AAG Wadia] this morning, CASA supervisor,

24
00:00:37,930 --> 00:00:40,400
[Judge Rini] Alton Murphy. Okay, let me make

25
00:00:40,400 --> 00:00:42,650
[Judge Rini] a couple little notes here.

26
00:00:47,130 --> 00:00:47,680
[Judge Rini] All right. Thank you, Judge. At

27

00:00:47,680 --> 00:00:50,480

[AAG Wadia] this time, I would request that

28

00:00:50,480 --> 00:00:52,410

[AAG Wadia] mother be found in default,

29

00:00:52,970 --> 00:00:56,240

[AAG Wadia] pursuant to ORS 419B 914. The

30

00:00:56,240 --> 00:00:58,390

[AAG Wadia] agency has filed an affidavit

31

00:00:58,390 --> 00:01:00,460

[AAG Wadia] of an absent parent search as

32

00:01:00,460 --> 00:01:00,970

[AAG Wadia] well

33

00:01:00,970 --> 00:01:02,380

[AAG Wadia] as the Oregon Department of

34

00:01:02,380 --> 00:01:03,480

[AAG Wadia] Justice has filed its

35

00:01:03,480 --> 00:01:05,190

[AAG Wadia] declaration of diligent efforts

36

00:01:05,190 --> 00:01:06,730

[AAG Wadia] in trying to serve

37

00:01:06,730 --> 00:01:09,520

[AAG Wadia] mother. Mother has, despite the

38

00:01:09,520 --> 00:01:12,040

[AAG Wadia] agency attempting contact with

39

00:01:12,040 --> 00:01:14,730

[AAG Wadia] mother, emailing with mother,

40

00:01:14,730 --> 00:01:14,890

[AAG Wadia] trying

41

00:01:14,890 --> 00:01:16,900

[AAG Wadia] trying to set up dates, times,

42

00:01:16,900 --> 00:01:19,090

[AAG Wadia] locations to serve Mother, she

43

00:01:19,090 --> 00:01:22,750

[AAG Wadia] has essentially evaded service.

44

00:01:23,870 --> 00:01:24,530

[Judge Rini] Well, she's got that little pes

45

00:01:24,530 --> 00:01:25,570

[Judge Rini] ky warrant out.

46

00:01:25,870 --> 00:01:28,640

[AAG Wadia] Yes. And additionally, it can

47

00:01:28,640 --> 00:01:30,670

[AAG Wadia] be argued that Mother has

48

00:01:30,670 --> 00:01:33,170

[AAG Wadia] constructive notice of these

49

00:01:33,170 --> 00:01:33,590

[AAG Wadia] proceedings

50

00:01:33,590 --> 00:01:35,410

[AAG Wadia] that she has been attempting to

51

00:01:35,410 --> 00:01:37,450

[AAG Wadia] file in the dependency case. At

52

00:01:37,450 --> 00:01:39,510
[AAG Wadia] this point in time, Judge,

53
00:01:40,030 --> 00:01:41,100
[AAG Wadia] I would request that Mother be

54
00:01:41,100 --> 00:01:42,640
[AAG Wadia] found in default and that the

55
00:01:42,640 --> 00:01:44,410
[AAG Wadia] agency be able to proceed with

56
00:01:44,410 --> 00:01:44,610
[AAG Wadia] its

57
00:01:44,610 --> 00:01:46,230
[AAG Wadia] prima facie as to the

58
00:01:46,230 --> 00:01:48,310
[AAG Wadia] allegations as to mother,

59
00:01:48,310 --> 00:01:50,730
[AAG Wadia] father at our previous hearing

60
00:01:50,730 --> 00:01:52,730
[AAG Wadia] did enter admissions.

61
00:01:53,850 --> 00:01:57,730
[Judge Rini] Okay. I will note in my file, I

62
00:01:57,730 --> 00:02:01,250
[Judge Rini] have had an opportunity to

63
00:02:01,250 --> 00:02:02,730
[Judge Rini] review the

64
00:02:02,730 --> 00:02:06,720
[Judge Rini] declaration of diligent efforts

65
00:02:06,720 --> 00:02:09,410
[Judge Rini] and also the affidavit

66
00:02:09,410 --> 00:02:13,720
[Judge Rini] regarding efforts to serve mom,

67
00:02:13,720 --> 00:02:15,330
[Judge Rini] both of which have been filed.

68
00:02:15,330 --> 00:02:17,010
[Judge Rini] I will also take judicial

69
00:02:17,010 --> 00:02:19,090
[Judge Rini] notice of the fact that Judge

70
00:02:19,090 --> 00:02:19,510
[Judge Rini] Thompson

71
00:02:19,510 --> 00:02:20,910
[Judge Rini] has signed a warrant for mom

72
00:02:20,910 --> 00:02:22,660
[Judge Rini] and that is still outstanding.

73
00:02:22,660 --> 00:02:25,290
[Judge Rini] Mom has attempted to file

74
00:02:25,290 --> 00:02:26,440
[Judge Rini] documents

75
00:02:26,440 --> 00:02:31,090
[Judge Rini] which I ruled upon. Why are

76
00:02:31,090 --> 00:02:35,370
[Judge Rini] those not in the file? Can you

77

00:02:35,370 --> 00:02:37,780

[Judge Rini] ask him why those are not in

78

00:02:37,780 --> 00:02:38,990

[Judge Rini] the file?

79

00:02:38,990 --> 00:02:41,370

[Judge Rini] because I made a ruling on them

80

00:02:41,370 --> 00:02:41,710

[Judge Rini] .

81

00:02:43,750 --> 00:02:44,810

[Judge Rini] Let me double check.

82

00:02:44,910 --> 00:02:46,330

[Judge Rini] Oh, no, they're down on 1014.

83

00:02:47,470 --> 00:02:49,000

[Judge Rini] Mom is clearly using some AI,

84

00:02:49,000 --> 00:02:52,170

[Judge Rini] some chat, you know, whatever,

85

00:02:52,810 --> 00:02:55,930

[Judge Rini] but citing statutes that don't

86

00:02:55,930 --> 00:02:58,430

[Judge Rini] actually apply to juvenile

87

00:02:58,430 --> 00:02:59,270

[Judge Rini] proceedings.

88

00:02:59,270 --> 00:03:01,530

[Judge Rini] So it's computer generated.

89

00:03:03,070 --> 00:03:06,160

[Judge Rini] So she also is making some

90

00:03:06,160 --> 00:03:09,580

[Judge Rini] other efforts to do some fil

91

00:03:09,580 --> 00:03:12,970

[Judge Rini] ings, but I will find the state

92

00:03:12,970 --> 00:03:15,840

[Judge Rini] has made diligent efforts under

93

00:03:15,840 --> 00:03:19,810

[Judge Rini] 419B 914, and therefore will

94

00:03:19,810 --> 00:03:22,190

[Judge Rini] find mother in default.

95

00:03:22,490 --> 00:03:23,510

[Judge Rini] And she clearly knows of the

96

00:03:23,510 --> 00:03:25,100

[Judge Rini] proceedings as she keeps filing

97

00:03:25,100 --> 00:03:26,710

[Judge Rini] regarding the proceedings.

98

00:03:27,990 --> 00:03:30,390

[Judge Rini] So you may proceed.

99
00:03:30,390 --> 00:03:31,670
[AAG Wadia] Thank you, Your Honor. Your

100
00:03:31,670 --> 00:03:33,630
[AAG Wadia] Honor, at this time, the agency

101
00:03:33,630 --> 00:03:35,350
[AAG Wadia] would call Emily Marquand to

102
00:03:35,350 --> 00:03:37,360
[AAG Wadia] provide testimony regarding the

103
00:03:37,360 --> 00:03:39,390
[AAG Wadia] allegations to one another.

104
00:03:43,730 --> 00:03:43,730
Under the penalty of perjury,

105
00:03:43,730 --> 00:03:43,730
do you solemnly swear or affirm

106
00:03:43,730 --> 00:03:45,190
[Speaker 3] that the testimony you were

107
00:03:45,190 --> 00:03:46,500
[Speaker 3] about to give in this

108
00:03:46,500 --> 00:03:48,430
[Speaker 3] proceeding is the truth or the

109
00:03:48,430 --> 00:03:50,450
[Speaker 3] whole truth and nothing but the

110
00:03:50,450 --> 00:03:51,330
[Speaker 3] truth?

111
00:03:51,410 --> 00:03:51,930
[Speaker 3] Yes, I do.

112
00:03:52,170 --> 00:03:53,480
[Speaker 3] The statements of the person

113
00:03:53,480 --> 00:03:55,350
[Speaker 3] Marquandt's record, Emily Marqu

114
00:03:55,350 --> 00:03:57,670
[Speaker 3] andt, M-I-L-I-E-M-A-R-Q-U-A-N-D.

115
00:03:58,670 --> 00:04:00,430
[Judge Rini] Oh, you can be seated for your

116
00:04:00,430 --> 00:04:01,330
[Judge Rini] testimony.

117
00:04:03,670 --> 00:04:05,190
[AAG Wadia] Good morning, Ms. Marquand. How

118
00:04:05,190 --> 00:04:05,870
[AAG Wadia] are you employed?

119
00:04:06,110 --> 00:04:06,670
[AAG Wadia] I work for the Oregon

120
00:04:06,670 --> 00:04:07,970
[Speaker 3] Department of Human Services,

121
00:04:07,970 --> 00:04:09,110
[Speaker 3] Child Welfare in Washington

122
00:04:09,110 --> 00:04:09,650
[Speaker 3] County.

123
00:04:10,050 --> 00:04:10,800
[AAG Wadia] And how long have you been so

124
00:04:10,800 --> 00:04:11,730
[AAG Wadia] employed, ma'am?

125
00:04:11,970 --> 00:04:12,980
[Speaker 3] I've worked for the agency for

126
00:04:12,980 --> 00:04:14,070
[Speaker 3] eight and a half years.

127
00:04:14,590 --> 00:04:16,010
[AAG Wadia] Ms. Marquand, are you familiar

128
00:04:16,010 --> 00:04:17,700
[AAG Wadia] with the agency's petition in

129
00:04:17,700 --> 00:04:19,510
[AAG Wadia] the matter of Elmira Davis?

130
00:04:19,810 --> 00:04:20,110
[Speaker 3] Yes.

131
00:04:20,810 --> 00:04:22,020
[AAG Wadia] And as it relates to

132
00:04:22,020 --> 00:04:25,640
[AAG Wadia] allegations surrounding mother,

133
00:04:25,640 --> 00:04:27,390
[AAG Wadia] have you reviewed the petition

134
00:04:27,390 --> 00:04:28,390
[AAG Wadia] allegations?

135
00:04:28,670 --> 00:04:30,430
[AAG Wadia] Yes. What is the agency then

136
00:04:30,430 --> 00:04:32,050
[AAG Wadia] regarding allegation A? The

137
00:04:32,050 --> 00:04:34,350
[AAG Wadia] mother does not understand the

138
00:04:34,350 --> 00:04:35,770
[AAG Wadia] specific needs of this child

139
00:04:35,770 --> 00:04:37,580
[AAG Wadia] and lacks skills necessary to

140
00:04:37,580 --> 00:04:39,660
[AAG Wadia] safely parent. At the time of

141
00:04:39,660 --> 00:04:42,000
[Emily Marquand] the after hours call related to

142
00:04:42,000 --> 00:04:43,980
[Emily Marquand] this family, there was an

143
00:04:43,980 --> 00:04:46,050
[Emily Marquand] incident between child and

144
00:04:46,050 --> 00:04:47,940
[Emily Marquand] father. This resulted

145
00:04:47,940 --> 00:04:50,190
[Emily Marquand] ultimately in the child being

146
00:04:50,190 --> 00:04:52,080
[Emily Marquand] taken to the hospital for

147
00:04:52,080 --> 00:04:54,390
[Emily Marquand] reviews of any injuries. At

148
00:04:54,390 --> 00:04:56,390
[Emily Marquand] that point in time, hospital

149
00:04:56,390 --> 00:04:58,330
[Emily Marquand] staff had talked with the child

150
00:04:58,330 --> 00:04:58,640
[Emily Marquand] .

151
00:04:58,670 --> 00:05:00,520
[Emily Marquand] and the child had made some

152
00:05:00,520 --> 00:05:02,790
[Emily Marquand] very concerning disclosures of

153
00:05:02,790 --> 00:05:04,020
[Emily Marquand] suicidal ideations.

154
00:05:05,470 --> 00:05:06,560
[Emily Marquand] When Almira was informed that
D

155
00:05:06,560 --> 00:05:09,190
[Emily Marquand] HS was attempting to contact her

156
00:05:09,190 --> 00:05:11,140
[Emily Marquand] mother to release her to her

157
00:05:11,140 --> 00:05:11,470
[Emily Marquand] care,

158
00:05:11,470 --> 00:05:13,410
[Emily Marquand] she expressed concerns about

159
00:05:13,410 --> 00:05:15,390
[Emily Marquand] being in her mother's care.

160
00:05:17,630 --> 00:05:18,310
[Emily Marquand] After talking with the hospital

161
00:05:18,310 --> 00:05:20,310
[Emily Marquand] social worker, it was learned

162
00:05:20,310 --> 00:05:21,790
[Emily Marquand] that there were concerns around

163
00:05:21,790 --> 00:05:23,370
[Emily Marquand] the child's mental health and

164
00:05:23,370 --> 00:05:24,990

[Emily Marquand] self-harming, leading to the

165

00:05:24,990 --> 00:05:26,580

[Emily Marquand] hospital recommending that

166

00:05:26,580 --> 00:05:28,270

[Emily Marquand] the child actually admitted

167

00:05:28,270 --> 00:05:30,170

[Emily Marquand] that day for further evaluation

168

00:05:30,170 --> 00:05:34,430

[Emily Marquand] . The social worker did have the

169

00:05:34,430 --> 00:05:36,330

[Emily Marquand] conversation with the child and

170

00:05:36,330 --> 00:05:38,170

[Emily Marquand] completed the risk assessment

171

00:05:38,170 --> 00:05:39,760

[Emily Marquand] and was and the child was flag

172

00:05:39,760 --> 00:05:40,110

[Emily Marquand] ged as

173

00:05:40,110 --> 00:05:41,740

[Emily Marquand] high risk for suicidal ideation

174

00:05:41,740 --> 00:05:42,870

[Emily Marquand] and that the child had

175

00:05:42,870 --> 00:05:44,330

[Emily Marquand] attempted to commit suicide a

176

00:05:44,330 --> 00:05:45,150

[Emily Marquand] few days prior

177

00:05:45,150 --> 00:05:46,700

[Emily Marquand] with a knife but refused to

178

00:05:46,700 --> 00:05:48,520

[Emily Marquand] have her wrist and arms checked

179

00:05:48,520 --> 00:05:50,430

[Emily Marquand] for injuries. The child noted

180

00:05:50,430 --> 00:05:50,830

[Emily Marquand] that

181

00:05:51,790 --> 00:05:53,550

[Emily Marquand] she wouldn't attempt suicide if

182

00:05:53,550 --> 00:05:55,090

[Emily Marquand] she went home with her dad but

183

00:05:55,090 --> 00:05:56,750

[Emily Marquand] would attempt suicide if she

184

00:05:56,750 --> 00:05:58,910

[Emily Marquand] went home with her mom. The

185

00:05:58,910 --> 00:06:01,260

[Emily Marquand] hospital social worker informed

186

00:06:01,260 --> 00:06:03,280

[Emily Marquand] the agency that because of

187

00:06:03,280 --> 00:06:03,550

[Emily Marquand] these

188

00:06:03,550 --> 00:06:05,920

[Emily Marquand] ideations that the child would

189

00:06:05,920 --> 00:06:08,060

[Emily Marquand] be held overnight and have a

190

00:06:08,060 --> 00:06:10,390

[Emily Marquand] full evaluation the morning of

191

00:06:10,390 --> 00:06:11,630

[Emily Marquand] September 7th.

192

00:06:15,870 --> 00:06:18,630

[Emily Marquand] the hospital social worker

193

00:06:18,630 --> 00:06:21,660

[Emily Marquand] later informed the agency that

194

00:06:21,660 --> 00:06:24,390

[Emily Marquand] the mother did talk with the

195

00:06:24,390 --> 00:06:24,750

[Emily Marquand] child

196

00:06:24,750 --> 00:06:27,260

[Emily Marquand] while at the hospital and this

197

00:06:27,260 --> 00:06:29,490

[Emily Marquand] conversation ultimately

198

00:06:29,490 --> 00:06:31,500

[Emily Marquand] resulted in the child or

199

00:06:31,500 --> 00:06:32,590

[Emily Marquand] ultimately

200

00:06:32,590 --> 00:06:33,850

[Emily Marquand] resulted in the mother

201

00:06:33,850 --> 00:06:35,570

[Emily Marquand] confronting the child on these

202

00:06:35,570 --> 00:06:37,370

[Emily Marquand] concerning behaviors which led

203

00:06:37,370 --> 00:06:38,110

[Emily Marquand] to the child

204

00:06:38,110 --> 00:06:40,130

[Emily Marquand] then recanting these behaviors

205

00:06:40,130 --> 00:06:42,100

[Emily Marquand] or these statements and saying

206

00:06:42,100 --> 00:06:44,130

[Emily Marquand] that everybody was lying about

207

00:06:44,130 --> 00:06:44,510

[Emily Marquand] what she

208

00:06:44,510 --> 00:06:46,050

[Emily Marquand] had said related to the self-

209

00:06:46,050 --> 00:06:47,650

[Emily Marquand] harming and that she had tried

210

00:06:47,650 --> 00:06:49,310

[Emily Marquand] to kill herself at the mom.

211

00:06:51,550 --> 00:06:51,760

[Emily Marquand] There is significant concern

212

00:06:51,760 --> 00:06:54,100

[Emily Marquand] that the mother did coach the

213

00:06:54,100 --> 00:06:55,950

[Emily Marquand] child to recant these

214

00:06:55,950 --> 00:06:57,680

[Emily Marquand] statements after the

215

00:06:57,680 --> 00:07:00,090

[Emily Marquand] conversation that the mother

216

00:07:00,090 --> 00:07:02,350

[Emily Marquand] had with the child via phone.

217

00:07:06,830 --> 00:07:10,140

[Emily Marquand] and there have been numerous

218

00:07:10,140 --> 00:07:13,180

[Emily Marquand] situations over the years

219

00:07:13,180 --> 00:07:16,350

[Emily Marquand] related to the mother and the

220

00:07:16,350 --> 00:07:16,830

[Emily Marquand] child's

221

00:07:16,830 --> 00:07:18,800

[Emily Marquand] relationship. There have been

222

00:07:18,800 --> 00:07:20,760

[Emily Marquand] numerous reports captured under

223

00:07:20,760 --> 00:07:23,910

[Emily Marquand] the mother's case and there

224

00:07:23,910 --> 00:07:24,110

[Emily Marquand] have

225

00:07:24,110 --> 00:07:26,550

[Emily Marquand] been a total of 32 calls to the

226

00:07:26,550 --> 00:07:29,010

[Emily Marquand] agency with 19 of those calls

227

00:07:29,010 --> 00:07:31,630

[Emily Marquand] being assigned for assessment.

228

00:07:32,190 --> 00:07:34,350

[Emily Marquand] These are related to strictly

229

00:07:34,350 --> 00:07:36,700

[Emily Marquand] just Ms. Penn's case. There is

230

00:07:36,700 --> 00:07:38,070

[Emily Marquand] another case open under father

231

00:07:38,070 --> 00:07:38,190

[Emily Marquand] 's

232

00:07:38,190 --> 00:07:40,120

[Emily Marquand] name as father does have sole

233

00:07:40,120 --> 00:07:42,230

[Emily Marquand] custody of the child related to

234

00:07:42,230 --> 00:07:44,510

[Emily Marquand] the domestic relations case.

235

00:07:45,070 --> 00:07:46,140

[Emily Marquand] However, these calls of

236

00:07:46,140 --> 00:07:47,840

[Emily Marquand] concerns are concerns for

237

00:07:47,840 --> 00:07:49,710

[Emily Marquand] neglect, threat of harm,

238

00:07:49,710 --> 00:07:50,830

[Emily Marquand] exposure to violence,

239

00:07:50,830 --> 00:07:52,350

[Emily Marquand] and concerns for physical abuse

240

00:07:52,350 --> 00:07:53,820

[Emily Marquand] and substance use by the mother

241

00:07:53,820 --> 00:07:56,990

[Emily Marquand] . This child was in ODHS custody

242

00:07:56,990 --> 00:07:57,150

[Emily Marquand] from

243

00:07:58,030 --> 00:08:01,900

[Emily Marquand] January of 2020 to May of 2021.

244

00:08:01,900 --> 00:08:04,330

[Emily Marquand] Ultimately, this child and her

245

00:08:04,330 --> 00:08:06,570

[Emily Marquand] full sibling were returned to

246

00:08:06,570 --> 00:08:06,830

[Emily Marquand] their

247

00:08:06,830 --> 00:08:08,270

[Emily Marquand] father's care. Father had

248

00:08:08,270 --> 00:08:09,770

[Emily Marquand] engaged in all of the services

249

00:08:09,770 --> 00:08:11,210

[Emily Marquand] and had done what he needed to

250

00:08:11,210 --> 00:08:11,710

[Emily Marquand] do to get

251

00:08:11,710 --> 00:08:13,110

[Emily Marquand] his girls back. However,

252

00:08:13,110 --> 00:08:14,650

[Emily Marquand] through the life of that case,

253

00:08:14,650 --> 00:08:16,010

[Emily Marquand] the mother did not engage in

254

00:08:16,010 --> 00:08:16,750

[Emily Marquand] any services

255

00:08:16,750 --> 00:08:19,070

[Emily Marquand] and actually failed to do any

256

00:08:19,070 --> 00:08:21,850

[Emily Marquand] of the services. Those services

257

00:08:21,850 --> 00:08:24,210

[Emily Marquand] were ordered were parenting

258

00:08:24,210 --> 00:08:24,650

[Emily Marquand] classes,

259

00:08:24,650 --> 00:08:26,370

[Emily Marquand] stable housing, visitation, a

260

00:08:26,370 --> 00:08:28,260

[Emily Marquand] neuropsychological, maintaining

261

00:08:28,260 --> 00:08:29,710

[Emily Marquand] contact with the agency,

262

00:08:29,710 --> 00:08:30,490

[Emily Marquand] engaging in

263

00:08:30,490 --> 00:08:32,320

[Emily Marquand] DV counseling, sorry, victim

264

00:08:32,320 --> 00:08:34,230

[Emily Marquand] services or survivor services,

265

00:08:34,230 --> 00:08:36,150

[Emily Marquand] signing releases of information

266

00:08:36,150 --> 00:08:36,410

[Emily Marquand] ,

267

00:08:36,410 --> 00:08:38,040

[Emily Marquand] and engaging in the children's

268

00:08:38,040 --> 00:08:39,960

[Emily Marquand] services. Again, mother did not

269

00:08:39,960 --> 00:08:41,610

[Emily Marquand] engage in these. Ultimately,

270

00:08:41,610 --> 00:08:44,440

[Emily Marquand] the agency petitioned or motion

271

00:08:44,440 --> 00:08:47,270

[Emily Marquand] ed to dismiss the case, but that

272

00:08:47,270 --> 00:08:49,370

[Emily Marquand] was at the point in time

273

00:08:49,370 --> 00:08:50,640

[Emily Marquand] where father did have sole

274

00:08:50,640 --> 00:08:52,130

[Emily Marquand] custody of the children and he

275

00:08:52,130 --> 00:08:53,580

[Emily Marquand] was granted that in February of

276

00:08:53,580 --> 00:08:54,410

[Emily Marquand] 2021.

277

00:08:56,970 --> 00:08:56,970

During this assessment, the

278

00:08:56,970 --> 00:08:59,510

[Emily Marquand] agency did have conversations

279

00:08:59,510 --> 00:09:01,530

[Emily Marquand] with mother about the child's

280

00:09:01,530 --> 00:09:03,980

[Emily Marquand] suicidal ideations. The mother

281

00:09:03,980 --> 00:09:06,040

[Emily Marquand] refused to pick this child up

282

00:09:06,040 --> 00:09:08,250

[Emily Marquand] from the hospital. The mother

283

00:09:08,250 --> 00:09:08,490

[Emily Marquand] was

284

00:09:08,490 --> 00:09:11,160

[Emily Marquand] also made aware of the concerns

285

00:09:11,160 --> 00:09:13,640

[Emily Marquand] that brought the child to the

286

00:09:13,640 --> 00:09:16,440

[Emily Marquand] hospital and refused to really

287

00:09:16,440 --> 00:09:16,730

[Emily Marquand] engage

288

00:09:16,730 --> 00:09:19,090

[Emily Marquand] with the agency and protect her

289

00:09:19,090 --> 00:09:21,620

[Emily Marquand] child. She has made very little

290

00:09:21,620 --> 00:09:24,570

[Emily Marquand] attempts to have any visitation

291

00:09:24,570 --> 00:09:25,820

[Emily Marquand] in terms of in-person visit

292

00:09:25,820 --> 00:09:27,130

[Speaker 3] ation or engagement with the

293

00:09:27,130 --> 00:09:28,120

[Speaker 3] agency that have been

294

00:09:28,120 --> 00:09:30,410

[Speaker 3] meaningful. As

295

00:09:30,410 --> 00:09:33,380

[Speaker 3] noted earlier, that mother has

296

00:09:33,380 --> 00:09:36,240

[Speaker 3] engaged in emails to the agency

297

00:09:36,240 --> 00:09:38,970

[Emily Marquand] more demands than anything
and

298

00:09:38,970 --> 00:09:39,130

[Emily Marquand] has

299

00:09:39,130 --> 00:09:40,480

[Emily Marquand] refused to meet with the agency

300

00:09:40,480 --> 00:09:41,770

[Emily Marquand] and understand and learn this

301

00:09:41,770 --> 00:09:42,750

[Emily Marquand] child's behaviors and

302

00:09:42,750 --> 00:09:43,450

[Emily Marquand] understand and

303

00:09:43,450 --> 00:09:45,610

[Emily Marquand] learn what the child and the

304

00:09:45,610 --> 00:09:47,690

[Emily Marquand] trauma that this child has

305

00:09:47,690 --> 00:09:49,450

[Emily Marquand] engaged in or has been

306

00:09:49,450 --> 00:09:50,090

[Emily Marquand] subjected to,

307

00:09:50,090 --> 00:09:53,190

[Emily Marquand] my apologies. The agency does

308

00:09:53,190 --> 00:09:56,050

[Emily Marquand] have concerns that the mother

309

00:09:56,050 --> 00:09:59,450

[Emily Marquand] has coached this child. There

310

00:09:59,450 --> 00:09:59,770

[Emily Marquand] has been

311

00:09:59,770 --> 00:10:02,150

[Emily Marquand] ongoing concerns over the years

312

00:10:02,150 --> 00:10:04,230

[Emily Marquand] related to that and that the

313

00:10:04,230 --> 00:10:06,330

[Emily Marquand] mother at this point in time

314

00:10:06,330 --> 00:10:06,490

[Emily Marquand] does

315

00:10:06,490 --> 00:10:08,290

[Emily Marquand] not have the skills necessary

316

00:10:08,290 --> 00:10:09,980

[Emily Marquand] and does not understand the

317

00:10:09,980 --> 00:10:11,770

[Emily Marquand] specific needs of this child

318

00:10:11,770 --> 00:10:13,700
[Emily Marquand] related to specifically mental

319
00:10:13,700 --> 00:10:15,470
[Emily Marquand] health and the ongoing kind of

320
00:10:15,470 --> 00:10:17,450
[Emily Marquand] tumultuous relationship between

321
00:10:17,450 --> 00:10:18,950
[Emily Marquand] the mother and father related

322
00:10:18,950 --> 00:10:20,800
[Emily Marquand] to custody. Ms. Markpond, what

323
00:10:20,800 --> 00:10:22,330
[AAG Wadia] additional information has the

324
00:10:22,330 --> 00:10:24,000
[AAG Wadia] agency learned regarding Alley

325
00:10:24,000 --> 00:10:25,720
[AAG Wadia] ation 2B which reads the mother

326
00:10:25,720 --> 00:10:27,370
[AAG Wadia] fails to recognize the safety

327
00:10:27,370 --> 00:10:28,160
[AAG Wadia] threats

328
00:10:28,160 --> 00:10:30,080
[AAG Wadia] presented by father, I

329

00:10:30,080 --> 00:10:32,670
[AAG Wadia] apologize for that type of, and

330
00:10:32,670 --> 00:10:34,670
[AAG Wadia] is unwilling or unable to

331
00:10:34,670 --> 00:10:35,040
[AAG Wadia] protect the

332
00:10:35,040 --> 00:10:37,030
[AAG Wadia] child from father's unsafe

333
00:10:37,030 --> 00:10:39,110
[Emily Marquand] behaviors um as noted the day

334
00:10:39,110 --> 00:10:42,130
[Emily Marquand] of the after hours situation

335
00:10:42,130 --> 00:10:42,490
[Emily Marquand] and all

336
00:10:42,490 --> 00:10:44,650
[Emily Marquand] call workers did have contact

337
00:10:44,650 --> 00:10:46,750
[Emily Marquand] with mother eventually i think

338
00:10:46,750 --> 00:10:48,410
[Emily Marquand] it was many hours later

339
00:10:48,410 --> 00:10:50,570
[Emily Marquand] and informed them of what had

340

00:10:50,570 --> 00:10:53,270

[Emily Marquand] been happening um and um
which

341

00:10:53,270 --> 00:10:56,890

[Emily Marquand] ultimately led the child to the

342

00:10:56,890 --> 00:10:58,580

[Emily Marquand] hospital in the first place um

343

00:10:58,580 --> 00:11:00,140

[Emily Marquand] related to the altercation

344

00:11:00,140 --> 00:11:02,570

[Emily Marquand] between father and child um

345

00:11:04,010 --> 00:11:05,550

[Emily Marquand] Despite knowing that, the

346

00:11:05,550 --> 00:11:07,230

[Emily Marquand] mother refused to pick up this

347

00:11:07,230 --> 00:11:12,250

[Emily Marquand] child. In addition, since the

348

00:11:12,250 --> 00:11:13,530

[Emily Marquand] dismissal of

349

00:11:13,530 --> 00:11:15,210

[Emily Marquand] the prior dependency case in

350

00:11:15,210 --> 00:11:17,530

[Emily Marquand] 2021, there have been a total

351

00:11:17,530 --> 00:11:19,280

[Emily Marquand] of 20 calls to the hotline

352

00:11:19,280 --> 00:11:20,250

[Emily Marquand] related to

353

00:11:20,250 --> 00:11:23,390

[Emily Marquand] father's case in our system, 10

354

00:11:23,390 --> 00:11:26,040

[Emily Marquand] of which have been assigned.

355

00:11:26,040 --> 00:11:28,540

[Emily Marquand] And those cases have been

356

00:11:28,540 --> 00:11:29,850

[Emily Marquand] related to

357

00:11:29,850 --> 00:11:31,750

[Emily Marquand] to concerns of physical abuse

358

00:11:31,750 --> 00:11:33,740

[Emily Marquand] and maltreatment. The mother

359

00:11:33,740 --> 00:11:34,890

[Emily Marquand] has engaged in those

360

00:11:34,890 --> 00:11:35,730

[Emily Marquand] assessments.

361

00:11:35,730 --> 00:11:37,490

[Emily Marquand] The mother has, I will say

362
00:11:37,490 --> 00:11:39,730
[Emily Marquand] limitedly, has engaged in those

363
00:11:39,730 --> 00:11:41,730
[Emily Marquand] assessments. She has been

364
00:11:41,730 --> 00:11:43,360
[Emily Marquand] put on notice of the concerning

365
00:11:43,360 --> 00:11:44,680
[Emily Marquand] behaviors that have been

366
00:11:44,680 --> 00:11:46,450
[Emily Marquand] happening, especially around

367
00:11:46,450 --> 00:11:48,770
[Emily Marquand] that relationship between child

368
00:11:48,770 --> 00:11:50,960
[Emily Marquand] and father. Mother also has a

369
00:11:50,960 --> 00:11:53,130
[Emily Marquand] very tumultuous relationship

370
00:11:53,130 --> 00:11:55,890
[Emily Marquand] with father and I apologize

371
00:11:55,890 --> 00:11:58,420
[Emily Marquand] excuse me the agency has an

372
00:11:58,420 --> 00:12:00,630
[Emily Marquand] obligation to inform

373
00:12:00,630 --> 00:12:02,370
[Emily Marquand] legal and biological parents of

374
00:12:02,370 --> 00:12:03,720
[Emily Marquand] all of these assessments

375
00:12:03,720 --> 00:12:05,010
[Emily Marquand] happening and so again

376
00:12:05,010 --> 00:12:06,760
[Emily Marquand] despite knowing all of this is

377
00:12:06,760 --> 00:12:08,580
[Emily Marquand] despite the history the mother

378
00:12:08,580 --> 00:12:09,390
[Emily Marquand] has failed to

379
00:12:09,390 --> 00:12:11,440
[Emily Marquand] modify the domestic relations

380
00:12:11,440 --> 00:12:13,530
[Emily Marquand] order in which granted father's

381
00:12:13,530 --> 00:12:14,670
[Emily Marquand] old custody and I

382
00:12:14,670 --> 00:12:16,460
[Emily Marquand] believe mom was supervised

383
00:12:16,460 --> 00:12:17,770
[Emily Marquand] parenting time is my

384
00:12:17,770 --> 00:12:19,470
[Emily Marquand] understanding and she is

385
00:12:19,470 --> 00:12:20,350
[Emily Marquand] to be able to protect this

386
00:12:20,350 --> 00:12:21,980
[AAG Wadia] child. And finally, Ms. Marqu

387
00:12:21,980 --> 00:12:23,690
[AAG Wadia] and, what additional information

388
00:12:23,690 --> 00:12:24,150
[AAG Wadia] has the

389
00:12:24,150 --> 00:12:25,720
[AAG Wadia] agency learned regarding Alley

390
00:12:25,720 --> 00:12:27,190
[AAG Wadia] ation 2C, which reads, the

391
00:12:27,190 --> 00:12:28,790
[AAG Wadia] mother is involved in criminal

392
00:12:28,790 --> 00:12:29,470
[AAG Wadia] activities

393
00:12:29,470 --> 00:12:30,790
[AAG Wadia] which interfere with her

394
00:12:30,790 --> 00:12:32,300
[AAG Wadia] ability to safely parent the

395
00:12:32,300 --> 00:12:33,860
[Emily Marquand] child. Yeah, mother has at

396
00:12:33,860 --> 00:12:34,690
[Emily Marquand] least two open

397
00:12:34,690 --> 00:12:36,090
[Emily Marquand] cases. One is the pending

398
00:12:36,090 --> 00:12:37,740
[Emily Marquand] charges of unlawful possession

399
00:12:37,740 --> 00:12:39,380
[Emily Marquand] of methamphetamine and theft in

400
00:12:39,380 --> 00:12:39,670
[Emily Marquand] the

401
00:12:39,670 --> 00:12:41,260
[Emily Marquand] first degree from September of

402
00:12:41,260 --> 00:12:43,400
[Emily Marquand] 2024. Mother currently has an

403
00:12:43,400 --> 00:12:44,830
[Emily Marquand] active warrant out for her

404
00:12:44,830 --> 00:12:46,810
[Emily Marquand] arrest and this has been active

405
00:12:46,810 --> 00:12:49,620
[Emily Marquand] since June of 2025, June 23rd

406
00:12:49,620 --> 00:12:52,510
[Emily Marquand] of 2025. She also has the

407
00:12:52,510 --> 00:12:52,830
[Emily Marquand] pending

408
00:12:52,830 --> 00:12:54,140
[Emily Marquand] theft in the first degree

409
00:12:54,140 --> 00:12:56,410
[Emily Marquand] charge from May of 2024. Mother

410
00:12:56,410 --> 00:12:58,060
[Emily Marquand] failed to appear to her hearing

411
00:12:58,060 --> 00:12:59,050
[Emily Marquand] on June 23

412
00:12:59,050 --> 00:13:01,570
[Emily Marquand] of 2025 for the theft of the

413
00:13:01,570 --> 00:13:03,630
[Emily Marquand] first degree but there was no

414
00:13:03,630 --> 00:13:05,010
[Emily Marquand] warrant issued in my

415
00:13:05,010 --> 00:13:06,170
[Emily Marquand] understanding

416
00:13:06,170 --> 00:13:08,520
[Emily Marquand] for that case likely because

417
00:13:08,520 --> 00:13:10,860
[Emily Marquand] there was the warrant for the

418
00:13:10,860 --> 00:13:13,290
[Emily Marquand] possession of meth and theft

419
00:13:13,290 --> 00:13:15,670
[Emily Marquand] charged from September of 24.

420
00:13:15,670 --> 00:13:18,350
[Emily Marquand] These are still open cases. The

421
00:13:18,350 --> 00:13:21,990
[Emily Marquand] mother hasn't cleared her

422
00:13:21,990 --> 00:13:23,960
[Emily Marquand] warrant for those cases. There

423
00:13:23,960 --> 00:13:26,940
[Emily Marquand] are significant concerns around

424
00:13:26,940 --> 00:13:29,700
[Emily Marquand] the substance use, but at this

425
00:13:29,700 --> 00:13:32,300
[Emily Marquand] time, these are pending and

426
00:13:32,300 --> 00:13:35,000
[Emily Marquand] open cases, and the agency has

427
00:13:35,000 --> 00:13:37,860
[Emily Marquand] not had meaningful contact with

428
00:13:37,860 --> 00:13:40,520
[Emily Marquand] the mother to fully assess her

429
00:13:40,520 --> 00:13:42,250
[Emily Marquand] and get information about her

430
00:13:42,250 --> 00:13:43,050
[Emily Marquand] substance use.

431
00:13:43,050 --> 00:13:43,970
[Speaker 3] but these are concerning

432
00:13:43,970 --> 00:13:44,530
[Speaker 3] behaviors.

433
00:13:45,410 --> 00:13:46,690
[AAG Wadia] Does the agency have any reason

434
00:13:46,690 --> 00:13:47,940
[AAG Wadia] to believe that Amira is an

435
00:13:47,940 --> 00:13:48,570
[AAG Wadia] Indian child

436
00:13:48,570 --> 00:13:49,660
[AAG Wadia] for the purposes of the Indian

437
00:13:49,660 --> 00:13:50,820
[AAG Wadia] Child Welfare Act or the Oregon

438
00:13:50,820 --> 00:13:51,830
[AAG Wadia] Indian Child Welfare Act?

439
00:13:51,970 --> 00:13:53,180
[Emily Marquand] There is no reason to believe

440
00:13:53,180 --> 00:13:54,610
[Emily Marquand] that equal or equal or why.

441
00:13:55,530 --> 00:13:56,280
[AAG Wadia] Ms. Marquant, to best of your

442
00:13:56,280 --> 00:13:58,430
[AAG Wadia] knowledge, is mother an active

443
00:13:58,430 --> 00:13:59,610
[AAG Wadia] service member

444
00:13:59,610 --> 00:14:00,930
[AAG Wadia] subject to the Service Member

445
00:14:00,930 --> 00:14:01,870
[AAG Wadia] Civil Relief Act?

446
00:14:02,210 --> 00:14:02,510
[AAG Wadia] No.

447
00:14:03,010 --> 00:14:03,930
[AAG Wadia] To best of your knowledge, is

448
00:14:03,930 --> 00:14:05,370
[AAG Wadia] there any reason why mother's

449
00:14:05,370 --> 00:14:07,370
[AAG Wadia] appearance today is out of her,

450
00:14:07,750 --> 00:14:08,770
[AAG Wadia] non-appearance today, is out of

451
00:14:08,770 --> 00:14:09,490
[AAG Wadia] her control?

452
00:14:10,210 --> 00:14:10,450
No.

453
00:14:11,190 --> 00:14:11,970
[AAG Wadia] I have no further questions,

454
00:14:11,970 --> 00:14:12,490
[AAG Wadia] Judge.

455
00:14:13,050 --> 00:14:15,450
[Judge Rini] All right. Ms. Moles and Mr. L

456
00:14:15,450 --> 00:14:17,690
[Judge Rini] otzke, anything you wish to add

457
00:14:17,690 --> 00:14:20,310
[Judge Rini] regarding the default fact

458
00:14:20,310 --> 00:14:20,790
[Judge Rini] basis?

459
00:14:20,790 --> 00:14:23,410
[Judge Rini] All right. Based upon the

460
00:14:23,410 --> 00:14:26,070
[Judge Rini] testimony received and the

461
00:14:26,070 --> 00:14:31,360
[Judge Rini] court is...okay, let me back up

462
00:14:31,360 --> 00:14:32,850
[Judge Rini] a little bit. I've pulled up so

463
00:14:32,850 --> 00:14:34,090
[Judge Rini] many files right now.

464
00:14:43,050 --> 00:14:51,610
[Judge Rini] All right, I want to. I'll take

465
00:14:51,610 --> 00:14:56,620
judicial notice of the fact

466
00:14:56,620 --> 00:15:00,970
[Judge Rini] that she has a warrant out on

467
00:15:00,970 --> 00:15:11,050
[Judge Rini] 24 CR 49043. And.

468
00:15:13,050 --> 00:15:27,740
I think there was one other one

469
00:15:27,740 --> 00:15:34,830
[Judge Rini] . Okay. So as to mom and just f

470
00:15:34,830 --> 00:15:39,410
[Judge Rini] leashing out some of the diligent

471
00:15:39,410 --> 00:15:42,170
[Judge Rini] efforts finding. I am noting

472
00:15:42,170 --> 00:15:44,450
[Judge Rini] that not only do I have your

473
00:15:44,450 --> 00:15:47,070
[Judge Rini] affidavit and your filings as

474
00:15:47,070 --> 00:15:47,550
[Judge Rini] to your

475
00:15:47,550 --> 00:15:49,280
[Judge Rini] efforts, I will note also mom

476
00:15:49,280 --> 00:15:51,100
[Judge Rini] actively avoiding service and

477
00:15:51,100 --> 00:15:52,920
[Judge Rini] has an active warrant. Mother

478
00:15:52,920 --> 00:15:53,450
[Judge Rini] is clearly

479
00:15:53,450 --> 00:15:54,930
[Judge Rini] aware of the proceedings. She

480
00:15:54,930 --> 00:15:56,370
[Judge Rini] has been submitting motions,

481
00:15:56,370 --> 00:15:57,640
[Judge Rini] emailing the court staff,

482
00:15:57,640 --> 00:15:58,410
[Judge Rini] including the

483
00:15:58,410 --> 00:16:00,170
[Judge Rini] deputy trial court

484
00:16:00,170 --> 00:16:03,450
[Judge Rini] administrator. I will also note

485
00:16:03,450 --> 00:16:06,120
[Judge Rini] because for all files, files

486
00:16:06,120 --> 00:16:07,730
[Judge Rini] get linked in the

487
00:16:07,730 --> 00:16:11,510
[Judge Rini] system. I am also aware that,

488
00:16:11,510 --> 00:16:15,580
[Judge Rini] well, interesting to note, when

489
00:16:15,580 --> 00:16:18,690
[Judge Rini] I read, I think it was Barr

490
00:16:18,690 --> 00:16:19,490
[Judge Rini] ister

491
00:16:19,490 --> 00:16:20,780
[Judge Rini] Legal Services did one of your

492
00:16:20,780 --> 00:16:22,100
[Judge Rini] attempted affidavits, and he

493
00:16:22,100 --> 00:16:23,350
[Judge Rini] described the person who

494

00:16:23,350 --> 00:16:23,590

[Judge Rini] answered

495

00:16:23,590 --> 00:16:25,600

[Judge Rini] the door at the one place, who,

496

00:16:25,600 --> 00:16:27,090

[Judge Rini] by the way, matches the

497

00:16:27,090 --> 00:16:29,150

[Judge Rini] description of the daddy of her

498

00:16:29,150 --> 00:16:31,450

[Judge Rini] child, Feliciano, who has a

499

00:16:31,450 --> 00:16:33,660

[Judge Rini] warrant out and attorney and

500

00:16:33,660 --> 00:16:35,780

[Judge Rini] date, though, for, lo and

501

00:16:35,780 --> 00:16:36,650

[Judge Rini] behold,

502

00:16:36,810 --> 00:16:38,300

[Judge Rini] They're co-defendants for a

503

00:16:38,300 --> 00:16:40,360

[Judge Rini] retail theft case, and he's got

504

00:16:40,360 --> 00:16:42,630

[Judge Rini] a TSI right now to address that

505

00:16:42,630 --> 00:16:42,930

[Judge Rini] warrant,

506

00:16:43,390 --> 00:16:44,320

[Judge Rini] which is for contempt for

507

00:16:44,320 --> 00:16:46,290

[Judge Rini] having contact with Ms. Penn.

508

00:16:46,590 --> 00:16:48,490

[Judge Rini] And also noting that Ms. Penn

509

00:16:48,490 --> 00:16:50,530

[Judge Rini] has attempted to file habeas

510

00:16:50,530 --> 00:16:52,550

[Judge Rini] corpus motions to get him out

511

00:16:52,550 --> 00:16:53,730

[Judge Rini] of custody.

512

00:16:55,230 --> 00:16:57,860

[Judge Rini] Very complex web of stuff going

513

00:16:57,860 --> 00:16:59,330

[Judge Rini] on here.

514

00:17:00,170 --> 00:17:02,180

[Judge Rini] but she clearly knows and the

515

00:17:02,180 --> 00:17:03,950

[Judge Rini] fact that she is actively

516
00:17:03,950 --> 00:17:06,170
[Judge Rini] avoiding service does not stop

517
00:17:06,170 --> 00:17:06,330
[Judge Rini] the

518
00:17:06,330 --> 00:17:08,180
[Judge Rini] proceedings from going forward

519
00:17:08,180 --> 00:17:09,950
[Judge Rini] the agency has definitely made

520
00:17:09,950 --> 00:17:11,690
[Judge Rini] diligent efforts was the foster

521
00:17:11,690 --> 00:17:13,670
[Judge Rini] parent notified of today's

522
00:17:13,670 --> 00:17:15,920
[Judge Rini] hearing yes okay i'll note that

523
00:17:15,920 --> 00:17:18,170
[Judge Rini] but no foster parent appeared

524
00:17:26,080 --> 00:17:27,840
[Judge Rini] I will also note that in the

525
00:17:27,840 --> 00:17:29,950
[Judge Rini] dismissal of Feliciano's case

526
00:17:29,950 --> 00:17:32,360
[Judge Rini] in Multnomah County, Judge Troy

527
00:17:32,360 --> 00:17:34,330
[Judge Rini] clearly was not happy, wrote

528
00:17:34,330 --> 00:17:36,230
[Judge Rini] multiple paragraphs about his

529
00:17:36,230 --> 00:17:38,190
[Judge Rini] concerns about the lethality of

530
00:17:38,190 --> 00:17:39,800
[Judge Rini] domestic violence in that

531
00:17:39,800 --> 00:17:40,770
[Judge Rini] household.

532
00:17:40,770 --> 00:17:42,380
[Judge Rini] That was not part of this case

533
00:17:42,380 --> 00:17:44,210
[Judge Rini] with mom and this father. It's

534
00:17:44,210 --> 00:17:45,290
[Judge Rini] part of the jurisdiction.

535
00:17:46,030 --> 00:17:48,200
[Judge Rini] But this is a mother who is not

536
00:17:48,200 --> 00:17:51,190
[Judge Rini] unfamiliar with the dependency

537
00:17:51,190 --> 00:17:52,290
[Judge Rini] system.

538
00:17:53,830 --> 00:17:55,190
[Judge Rini] I have no reason to believe the

539
00:17:55,190 --> 00:17:56,320
[Judge Rini] Indian Child Welfare Act

540
00:17:56,320 --> 00:17:57,530
[Judge Rini] federal or state applied.

541
00:17:57,630 --> 00:17:58,390
[Judge Rini] Is anyone else?

542
00:17:58,630 --> 00:17:59,560
[Judge Rini] I did not see anything in the

543
00:17:59,560 --> 00:18:00,250
[Judge Rini] paperwork.

544
00:18:00,710 --> 00:18:02,490
[Judge Rini] Child is under the age of 18.

545
00:18:02,630 --> 00:18:03,630
[Judge Rini] Venue is proper.

546
00:18:04,600 --> 00:18:05,330
[Judge Rini] This court has jurisdiction

547
00:18:05,330 --> 00:18:07,160
[Judge Rini] under the Uniform Child Custody

548
00:18:07,160 --> 00:18:09,270
[Judge Rini] Jurisdiction Enforcement Act.

549
00:18:10,130 --> 00:18:12,010
[Judge Rini] I will find that the state has

550
00:18:12,010 --> 00:18:13,770
[Judge Rini] proven for mom.

551
00:18:14,630 --> 00:18:17,670
[Judge Rini] That was allegations A, B, and

552
00:18:17,670 --> 00:18:18,290
[Judge Rini] C.

553
00:18:23,830 --> 00:18:28,530
[Judge Rini] Let's see. Dad made his

554
00:18:28,530 --> 00:18:38,470
[Judge Rini] admissions back on October 14.

555
00:18:38,470 --> 00:18:49,230
[Judge Rini] Based upon that, child is found

556
00:18:49,230 --> 00:18:50,440
[Judge Rini] within the jurisdiction of the

557
00:18:50,440 --> 00:18:50,830
[Judge Rini] court.

558
00:18:51,830 --> 00:18:53,230
[Judge Rini] All right. Are the parties

559
00:18:53,230 --> 00:18:54,030
[Judge Rini] prepared to proceed to

560
00:18:54,030 --> 00:18:55,890
[Judge Rini] disposition? Yes, Your Honor.

561
00:18:55,890 --> 00:18:58,050
[Judge Rini] All right. I have been handed

562
00:18:58,050 --> 00:19:00,580
[Judge Rini] what will be marked as State's

563
00:19:00,580 --> 00:19:03,290
[Judge Rini] Exhibit 1, consisting of the

564
00:19:03,290 --> 00:19:05,920
[Judge Rini] October 30th letter to the

565
00:19:05,920 --> 00:19:08,190
[Judge Rini] court and a proposed action

566
00:19:08,190 --> 00:19:11,080
[Judge Rini] agreement for each parent. What

567
00:19:11,080 --> 00:19:13,450
[Judge Rini] would you like to tell me?

568
00:19:13,690 --> 00:19:14,990
[AAG Wadia] At this point in time, Judge,

569
00:19:14,990 --> 00:19:16,240
[AAG Wadia] the agency does respectfully

570
00:19:16,240 --> 00:19:17,390
[AAG Wadia] request the court order the

571
00:19:17,390 --> 00:19:17,810
[AAG Wadia] services

572
00:19:17,810 --> 00:19:19,970
[AAG Wadia] as outlined on the service

573
00:19:19,970 --> 00:19:22,020
[AAG Wadia] checklist as to mother and

574
00:19:22,020 --> 00:19:22,930
[AAG Wadia] father.

575
00:19:23,190 --> 00:19:25,340
[AAG Wadia] I believe Mr. Davis previously

576
00:19:25,340 --> 00:19:27,480
[AAG Wadia] indicated a stipulation to the

577
00:19:27,480 --> 00:19:29,750
[AAG Wadia] psychological evaluation.

578
00:19:31,150 --> 00:19:31,850
[AAG Wadia] At this point in time, if Ms.

579
00:19:31,850 --> 00:19:34,110
[AAG Wadia] Marquand is still under oath, I

580
00:19:34,110 --> 00:19:34,860
[AAG Wadia] would ask her to provide

581
00:19:34,860 --> 00:19:35,970
[AAG Wadia] some updates and testimony.

582 00:19:36,310 --> 00:19:36,910 [AAG Wadia] Ms. Marquand?	593 00:20:07,330 --> 00:20:09,490 [Emily Marquand] since the onset of this case.
583 00:19:36,910 --> 00:19:41,260 [Emily Marquand] Your Honor, the agency has	594 00:20:09,490 --> 00:20:12,180 [Emily Marquand] The child is doing well. The
584 00:19:41,260 --> 00:19:46,110 [Emily Marquand] attempted to have contact with	595 00:20:12,180 --> 00:20:15,820 [Emily Marquand] child has stated that she does
585 00:19:46,110 --> 00:19:49,670 [Emily Marquand] mother. Again, most of these	596 00:20:15,820 --> 00:20:16,050 [Emily Marquand] want
586 00:19:49,670 --> 00:19:52,430 [Emily Marquand] contacts is more of demands by	597 00:20:16,050 --> 00:20:18,210 [Emily Marquand] contact with dad and that she,
587 00:19:52,430 --> 00:19:55,080 [Emily Marquand] mother and she stated that she	598 00:20:18,210 --> 00:20:20,260 [Emily Marquand] you know, on the onset of this
588 00:19:55,080 --> 00:19:57,250 [Emily Marquand] will only meet with the	599 00:20:20,260 --> 00:20:22,210 [Speaker 3] case didn't want to go home
589 00:19:57,250 --> 00:20:00,250 [Emily Marquand] agency once these demands are	600 00:20:22,210 --> 00:20:22,360 [Speaker 3] back
590 00:20:00,250 --> 00:20:03,390 [Emily Marquand] kind of fulfilled. The child	601 00:20:22,360 --> 00:20:23,380 [Speaker 3] to dad. I think that
591 00:20:03,390 --> 00:20:05,430 [Emily Marquand] has been at the relative	602 00:20:23,380 --> 00:20:24,850 [Speaker 3] relationship with dad is a much
592 00:20:05,430 --> 00:20:06,530 [Emily Marquand] resource parent	603 00:20:24,850 --> 00:20:25,950 [Speaker 3] stronger bond than the

604
00:20:25,950 --> 00:20:26,930
[Speaker 3] relationship with

605
00:20:26,930 --> 00:20:28,790
[Speaker 3] mother that this child has but

606
00:20:28,790 --> 00:20:30,580
[Speaker 3] ultimately she has also said

607
00:20:30,580 --> 00:20:32,450
[Speaker 3] that she will go live with her

608
00:20:32,450 --> 00:20:32,840
[Speaker 3] mother

609
00:20:32,840 --> 00:20:34,180
[Speaker 3] but wants to do family

610
00:20:34,180 --> 00:20:36,230
[Speaker 3] counseling first before that.

611
00:20:36,230 --> 00:20:38,110
[Speaker 3] Obviously mom has not engaged

612
00:20:38,110 --> 00:20:38,690
[Speaker 3] with the

613
00:20:38,690 --> 00:20:40,180
[Speaker 3] agency so that may take some

614
00:20:40,180 --> 00:20:41,600
[Speaker 3] time in order to kind of get

615
00:20:41,600 --> 00:20:43,330
[Speaker 3] set up but the child is willing

616
00:20:43,330 --> 00:20:43,410
[Speaker 3] and

617
00:20:43,410 --> 00:20:44,990
[Speaker 3] wanting to engage in that

618
00:20:44,990 --> 00:20:47,030
[Speaker 3] service. My understanding is

619
00:20:47,030 --> 00:20:49,940
[Speaker 3] with both parents and while the

620
00:20:49,940 --> 00:20:51,170
[Speaker 3] agency didn't

621
00:20:51,170 --> 00:20:54,500
[Speaker 3] check that box on the checklist

622
00:20:54,500 --> 00:20:57,940
[Speaker 3] of kind of therapeutic family

623
00:20:57,940 --> 00:21:00,210
[Speaker 3] therapy the agency is looking

624
00:21:00,210 --> 00:21:01,890
[Emily Marquand] at that as through the route of

625
00:21:01,890 --> 00:21:03,580
[Emily Marquand] the child services child is is

626
00:21:03,580 --> 00:21:05,240
[Emily Marquand] wanting that type of service

627
00:21:05,240 --> 00:21:05,570
[Emily Marquand] and that

628
00:21:05,570 --> 00:21:06,900
[Emily Marquand] will be happening through the

629
00:21:06,900 --> 00:21:08,250
[Emily Marquand] counseling services that the

630
00:21:08,250 --> 00:21:12,130
[Emily Marquand] child is engaged in um father

631
00:21:12,130 --> 00:21:13,410
[Emily Marquand] at the time

632
00:21:13,410 --> 00:21:14,930
[Emily Marquand] of the last hearing was still

633
00:21:14,930 --> 00:21:16,560
[Emily Marquand] in custody he's been since been

634
00:21:16,560 --> 00:21:19,570
[Emily Marquand] released yes as noted um and i

635
00:21:19,570 --> 00:21:20,130
[Emily Marquand] believe

636
00:21:20,130 --> 00:21:21,690
[Emily Marquand] that the no contact order with

637
00:21:21,690 --> 00:21:23,360
[Emily Marquand] child is still in place. It was

638
00:21:23,360 --> 00:21:25,830
[Emily Marquand] not modified. The agency is

639
00:21:25,830 --> 00:21:26,130
[Emily Marquand] working

640
00:21:26,130 --> 00:21:28,290
[Emily Marquand] with the father now that he's

641
00:21:28,290 --> 00:21:30,100
[Emily Marquand] out and child to get some of

642
00:21:30,100 --> 00:21:32,010
the things at the father's

643
00:21:32,010 --> 00:21:32,930
house for the

644
00:21:32,930 --> 00:21:34,450
child that she has wanted. This

645
00:21:34,450 --> 00:21:35,690
has been kind of an ongoing

646
00:21:35,690 --> 00:21:37,000
need for the child, but given

647
00:21:37,000 --> 00:21:37,730
father was

648
00:21:37,730 --> 00:21:38,980
incarcerated, there was kind of

649
00:21:38,980 --> 00:21:40,130
[Speaker 3] some barriers around that.

650
00:21:40,130 --> 00:21:43,430
[Speaker 3] Father has been extremely

651
00:21:43,430 --> 00:21:45,080
[Speaker 3] cooperative,

652
00:21:45,080 --> 00:21:46,110
[Speaker 3] and I want to just note that

653
00:21:46,110 --> 00:21:47,250
[Speaker 3] since father is here, he was

654
00:21:47,250 --> 00:21:48,500
[Speaker 3] really cooperative in the last

655
00:21:48,500 --> 00:21:49,250
[Speaker 3] case too. He

656
00:21:49,250 --> 00:21:52,010
[Emily Marquand] did what he needed to do to get

657
00:21:52,010 --> 00:21:54,810
[Emily Marquand] his children back and you know

658
00:21:54,810 --> 00:21:56,570
[Emily Marquand] as noted in testimony mother

659
00:21:56,570 --> 00:21:56,850
[Emily Marquand] didn't

660
00:21:57,410 --> 00:21:58,830
[Emily Marquand] and so a lot of that case in

661
00:21:58,830 --> 00:22:01,190
[Speaker 3] the prior dependency case was

662
00:22:01,190 --> 00:22:03,730
[Speaker 3] for kind of fighting the system

663
00:22:03,730 --> 00:22:03,970
[Speaker 3] and

664
00:22:05,010 --> 00:22:05,630
[Speaker 3] but father did engage in

665
00:22:05,630 --> 00:22:07,690
[Speaker 3] services father's willing to

666
00:22:07,690 --> 00:22:09,890
[Speaker 3] engage in services he's been in

667
00:22:09,890 --> 00:22:10,610
[Speaker 3] communication

668
00:22:10,610 --> 00:22:13,010
[Speaker 3] with mr milner is the perman

669
00:22:13,010 --> 00:22:15,730
[Speaker 3] ency worker and i think that you

670
00:22:15,730 --> 00:22:18,290
[Speaker 3] know with that no contact order

671
00:22:18,290 --> 00:22:19,790
[Speaker 3] there is that barrier, but once

672
00:22:19,790 --> 00:22:21,290
[Speaker 3] that's lifted, if and when that

673
00:22:21,290 --> 00:22:22,670
[Speaker 3] 's lifted, the agency will

674
00:22:22,670 --> 00:22:24,270
[Speaker 3] work diligently to kind of

675
00:22:24,270 --> 00:22:26,040
[Speaker 3] start those visits and start

676
00:22:26,040 --> 00:22:27,950
[Speaker 3] that in-home planning process

677
00:22:27,950 --> 00:22:28,570
[Speaker 3] between

678
00:22:28,570 --> 00:22:30,040
[Speaker 3] father and child. I have no

679
00:22:30,040 --> 00:22:32,170
[Speaker 3] reason to believe that ICWA or

680
00:22:32,170 --> 00:22:34,650
[Speaker 3] ICWA apply. Grandparents were

681
00:22:34,650 --> 00:22:36,130
[Speaker 3] also notified, or that at least

682
00:22:36,130 --> 00:22:37,440
[Speaker 3] the grandparents that we are

683
00:22:37,440 --> 00:22:39,010
[Speaker 3] aware of were notified as well,

684
00:22:39,310 --> 00:22:40,490
[Speaker 3] including the resource parent.

685
00:22:40,490 --> 00:22:44,590
[Judge Rini] All right, thank you. Ms. Molz?

686
00:22:44,590 --> 00:22:46,290
[Speaker 3] Thank you, Your Honor.

687
00:22:46,290 --> 00:22:49,390
[Speaker 3] I'll just say dad is continuing

688
00:22:49,390 --> 00:22:50,640
[Emily Marquand] to be cooperative as he was in

689
00:22:50,640 --> 00:22:51,430
[Emily Marquand] the last case.

690
00:22:51,570 --> 00:22:54,330
[Emily Marquand] He has already done parenting

691
00:22:54,330 --> 00:22:56,930
[Emily Marquand] classes as set up by DHS.

692
00:22:58,030 --> 00:22:58,710
[Emily Marquand] He also really wants to have

693
00:22:58,710 --> 00:23:00,580
[Emily Marquand] contact with his daughter to

694
00:23:00,580 --> 00:23:01,450
[Emily Marquand] that end.

695
00:23:01,910 --> 00:23:02,710
[Emily Marquand] I've been working with his

696
00:23:02,710 --> 00:23:03,870
[Emily Marquand] criminal attorney.

697
00:23:05,210 --> 00:23:06,180
[Emily Marquand] We filed the competing orders

698
00:23:06,180 --> 00:23:07,990
[Emily Marquand] paperwork, and that was denied

699
00:23:07,990 --> 00:23:08,830
[Emily Marquand] by Judge Guptill.

700
00:23:08,990 --> 00:23:10,560
[Judge Rini] Right, because I think you have

701
00:23:10,560 --> 00:23:12,040
[Judge Rini] to go through the old school

702
00:23:12,040 --> 00:23:12,550
[Judge Rini] process

703
00:23:12,550 --> 00:23:13,990
[Judge Rini] of requesting just the criminal

704
00:23:13,990 --> 00:23:15,110
[Judge Rini] court modification.

705
00:23:16,290 --> 00:23:17,790
[Emily Marquand] All right, so we'll continue

706
00:23:17,790 --> 00:23:19,930
[AAG Wadia] working on that. Maybe a third

707
00:23:19,930 --> 00:23:22,920
[AAG Wadia] try will be successful, finally

708
00:23:22,920 --> 00:23:25,090
[AAG Wadia] . I think that there's still a

709
00:23:25,090 --> 00:23:26,990
[AAG Wadia] lot of interested parties in

710
00:23:26,990 --> 00:23:28,730
[AAG Wadia] this case. The district

711
00:23:28,730 --> 00:23:30,630
[Emily Marquand] attorney may still have some

712
00:23:30,630 --> 00:23:32,670
[Emily Marquand] concerns about that contact,

713
00:23:32,670 --> 00:23:34,410
[Emily Marquand] but if we can have it per DHS

714
00:23:34,410 --> 00:23:36,700
[Emily Marquand] and then supervising, hopefully

715
00:23:36,700 --> 00:23:38,490
[Emily Marquand] that can alleviate some of

716
00:23:38,490 --> 00:23:39,930
[Emily Marquand] those concerns.

717
00:23:39,930 --> 00:23:41,520
[Emily Marquand] And dad is happy to cooperate

718
00:23:41,520 --> 00:23:43,680
[Emily Marquand] with the agency and getting the

719
00:23:43,680 --> 00:23:45,450
[Emily Marquand] child any of the things that

720
00:23:45,450 --> 00:23:47,390
[Emily Marquand] she's needing from the house,

721
00:23:47,390 --> 00:23:49,000
[Emily Marquand] anything that he's needing

722
00:23:49,000 --> 00:23:50,810
[Emily Marquand] moving forward, he's happy to

723
00:23:50,810 --> 00:23:51,210
[Emily Marquand] do.

724
00:23:51,770 --> 00:23:52,460
[Emily Marquand] As you know, he's already

725
00:23:52,460 --> 00:23:53,950
[Emily Marquand] resolved in this case, he didn

726
00:23:53,950 --> 00:23:55,250
[Emily Marquand] 't need to be here, but this

727
00:23:55,250 --> 00:23:56,730
[Emily Marquand] case is important to him, so it

728
00:23:56,730 --> 00:23:57,990
[Emily Marquand] was important for him to be

729
00:23:57,990 --> 00:23:59,240
[Emily Marquand] here and to keep abreast of

730
00:23:59,240 --> 00:24:00,590
[Emily Marquand] what's going on.

731
00:24:01,330 --> 00:24:02,770
[Emily Marquand] And I anticipate continuing in

732
00:24:02,770 --> 00:24:05,170
[Emily Marquand] that vein throughout the case.

733
00:24:06,050 --> 00:24:06,730
[Emily Marquand] Thank you.

734
00:24:06,730 --> 00:24:07,850
[Judge Rini] Mr. Latsky?

735
00:24:09,050 --> 00:24:10,200
Childhood is definitely in

736
00:24:10,200 --> 00:24:11,660
support of a modification of

737
00:24:11,660 --> 00:24:14,250
the release order for her

738
00:24:14,250 --> 00:24:14,670
father.

739
00:24:15,670 --> 00:24:17,270
And we'll support any devotion

740
00:24:17,270 --> 00:24:18,610
for the same.

741
00:24:19,210 --> 00:24:20,710
Otherwise, she's doing well.

742
00:24:22,390 --> 00:24:23,530
Continue in therapy.

743
00:24:27,870 --> 00:24:28,510
Sorry.

744
00:24:39,050 --> 00:24:58,830
[Emily Marquand] I realize that I did not list

745
00:24:58,830 --> 00:24:59,710
[Emily Marquand] the services.

746
00:25:00,710 --> 00:25:02,190
[Judge Rini] Oh, I'm going through that now.

747
00:25:02,190 --> 00:25:02,790
[Judge Rini] Okay, sorry.

748
00:25:09,050 --> 00:25:13,250
[Judge Rini] I'm just filling up the check

749
00:25:13,250 --> 00:25:18,320
[Judge Rini] in the box this is a goal all

750
00:25:18,320 --> 00:25:25,110
[Judge Rini] right you said

751
00:25:25,110 --> 00:25:28,390
[Judge Rini] grandparents were made aware.

752
00:25:28,390 --> 00:25:34,770
All right, at this point in

753
00:25:34,770 --> 00:25:40,390
[Judge Rini] time, child is placed in the

754
00:25:40,390 --> 00:25:40,950
[Judge Rini] legal custody

755
00:25:40,950 --> 00:25:42,020
[Judge Rini] of the Oregon Department of

756
00:25:42,020 --> 00:25:43,250
[Judge Rini] Human Services and Substitute

757
00:25:43,250 --> 00:25:44,450
[Judge Rini] Care. Diligent efforts were

758
00:25:44,450 --> 00:25:44,870
[Judge Rini] made for

759
00:25:44,870 --> 00:25:46,240
[Judge Rini] relative placement as that has

760
00:25:46,240 --> 00:25:47,770
[Judge Rini] occurred. That placement is the

761
00:25:47,770 --> 00:25:49,440
[Judge Rini] least restrictive, most family-

762
00:25:49,440 --> 00:25:49,670
[Judge Rini] like

763
00:25:49,670 --> 00:25:51,560
[Judge Rini] setting. Reasonable efforts

764
00:25:51,560 --> 00:25:53,170
[Judge Rini] have been made to prevent or

765
00:25:53,170 --> 00:25:54,910
[Judge Rini] eliminate the need for removal.

766
00:25:54,910 --> 00:25:55,190
[Judge Rini] I'm

767
00:25:55,190 --> 00:25:57,690
[Judge Rini] noting the contents of Exhibit

768
00:25:57,690 --> 00:25:59,830
[Judge Rini] 1 and also noting mother

769
00:25:59,830 --> 00:26:02,200
[Judge Rini] actively evading DHS despite

770
00:26:02,200 --> 00:26:03,050
[Judge Rini] multiple

771
00:26:03,050 --> 00:26:04,820
[Judge Rini] attempts by the agency. Current

772
00:26:04,820 --> 00:26:06,420
[Judge Rini] case plan is reunification.

773
00:26:06,420 --> 00:26:08,050
[Judge Rini] Backup plan would be given her

774
00:26:08,050 --> 00:26:10,290
[Judge Rini] age or guardianship. Again,

775
00:26:10,290 --> 00:26:12,370
[Judge Rini] child was made war to the court

776
00:26:12,370 --> 00:26:14,690
[Judge Rini] , legal custody, and guardians

777
00:26:14,690 --> 00:26:15,370
[Judge Rini] hip to the

778
00:26:15,370 --> 00:26:17,170
[Judge Rini] agency for out-of-home care the

779
00:26:17,170 --> 00:26:18,870
[Judge Rini] agency shall notify court and

780
00:26:18,870 --> 00:26:19,930
[Judge Rini] attorneys when a

781
00:26:19,930 --> 00:26:21,290
[Judge Rini] child has been returned to a

782
00:26:21,290 --> 00:26:22,820
[Judge Rini] parent or a change in placement

783
00:26:22,820 --> 00:26:23,770
[Judge Rini] make appropriate

784
00:26:23,770 --> 00:26:25,260
[Judge Rini] referrals for the services

785
00:26:25,260 --> 00:26:26,960
[Judge Rini] consult with parents attorney

786
00:26:26,960 --> 00:26:29,610
[Judge Rini] regarding the evaluator

787
00:26:29,610 --> 00:26:31,770
[Judge Rini] maintain regular contact with

788
00:26:31,770 --> 00:26:33,740
[Judge Rini] the providers mom shall visit

789
00:26:33,740 --> 00:26:35,090
[Judge Rini] participate in

790
00:26:35,090 --> 00:26:37,250
[Judge Rini] parent education classes

791
00:26:37,250 --> 00:26:39,250
[Judge Rini] maintain contact with the

792
00:26:39,250 --> 00:26:40,930
[Judge Rini] agency clear and resolve

793
00:26:40,930 --> 00:26:42,230
[Judge Rini] warrants and pending criminal

794
00:26:42,230 --> 00:26:43,540
[Judge Rini] matters and comply with their

795
00:26:43,540 --> 00:26:48,150
[Judge Rini] criminal court cases. For dad,

796
00:26:48,150 --> 00:26:48,850
[Judge Rini] visit

797
00:26:48,850 --> 00:26:50,590
[Judge Rini] when you can, when we can get

798
00:26:50,590 --> 00:26:52,400
[Judge Rini] that all lined up. Do a psych

799
00:26:52,400 --> 00:26:54,150
[Judge Rini] eval, participate in those

800
00:26:54,150 --> 00:26:55,070
[Judge Rini] services.

801
00:26:55,630 --> 00:26:57,490
[Judge Rini] Dad stipulates to the service

802
00:26:57,490 --> 00:27:00,140
[Judge Rini] with a CAPI. Clear and resolve

803
00:27:00,140 --> 00:27:02,710
[Judge Rini] all warrants pending criminal

804
00:27:02,710 --> 00:27:03,130
[Judge Rini] matters,

805
00:27:03,310 --> 00:27:05,150
[Judge Rini] comply with terms of pretrial

806
00:27:05,150 --> 00:27:07,660
[Judge Rini] release, probation, parole, etc

807
00:27:07,660 --> 00:27:10,010
[Judge Rini] . Sign releases and participate

808
00:27:10,010 --> 00:27:10,450
[Judge Rini] in any

809
00:27:10,450 --> 00:27:11,960
[Judge Rini] of the child's therapies when

810
00:27:11,960 --> 00:27:13,760
[Judge Rini] allowed and if necessary. We

811
00:27:13,760 --> 00:27:16,610
[Judge Rini] will go ahead and set a review

812
00:27:16,610 --> 00:27:18,990
[Judge Rini] hearing for February 23rd at 9.

813
00:27:18,990 --> 00:27:24,680
[Judge Rini] And permanency, if we're still

814
00:27:24,680 --> 00:27:31,000
[Judge Rini] involved, will be June 29th at

815
00:27:31,000 --> 00:27:32,350
[Judge Rini] 9.

816
00:27:40,450 --> 00:27:41,650
[Judge Rini] Anything further we need to

817
00:27:41,650 --> 00:27:42,470
[Judge Rini] address today?

818
00:27:42,990 --> 00:27:43,510
[AAG Wadia] No, Your Honor.

819
00:27:44,290 --> 00:27:44,730
[Judge Rini] Okay.

820
00:27:45,150 --> 00:27:46,290
[Judge Rini] Dad, I'm glad you're out.

821
00:27:47,070 --> 00:27:47,800
[Judge Rini] We never want you to go

822
00:27:47,800 --> 00:27:48,750
[Judge Rini] sideways.

823
00:27:50,250 --> 00:27:50,840
[Judge Rini] Everything goes better if you

824
00:27:50,840 --> 00:27:52,650
[Judge Rini] remain out of custody.

825
00:27:53,250 --> 00:27:54,220
[Judge Rini] So your attorneys will keep

826
00:27:54,220 --> 00:27:55,860
[Judge Rini] working regarding the visit

827
00:27:55,860 --> 00:27:56,490
[Judge Rini] ation.

828
00:27:58,930 --> 00:27:59,440
[Judge Rini] And let's see if we can make

829
00:27:59,440 --> 00:28:01,470
[Judge Rini] that happen because I know she

830
00:28:01,470 --> 00:28:02,590
[Judge Rini] really does want to see you.

831
00:28:02,850 --> 00:28:03,850
[Judge Rini] And it can be done in a safe

832
00:28:03,850 --> 00:28:04,830
[Judge Rini] and secure way.

833
00:28:05,210 --> 00:28:05,910
[Judge Rini] We just need to get the

834
00:28:05,910 --> 00:28:07,380
[Judge Rini] criminal court to allow us to

835
00:28:07,380 --> 00:28:08,190
[Judge Rini] control it.

836
00:28:08,890 --> 00:28:09,490
[Judge Rini] All right.

837
00:28:09,530 --> 00:28:10,370
[Judge Rini] That would be the order.

838
00:28:10,450 --> 00:28:11,530
[Judge Rini] THANK YOU, EVERYONE.